



GUIDELINE

Patient Confidentiality

Scope (Staff):	All NMHS Mental Health Staff
Scope (Area):	All NMHS Mental Health Areas

1. Aim

This guideline explains a mental health staff member's obligation to treat all patient information as confidential and should be read in conjunction with the [NMHS Healthcare Record – Access and Document Release Policy](#), the [Department of Health Patient Confidentiality Fact Sheet](#) and the [Department of Health Information Access, Use and Disclosure Policy](#) and the [MH Release of Information Policy](#).

Schedule 1 of the [Mental Health Act 2014 \(WA\) \(MHA\)](#) contains a Charter of Mental Health Care Principles and Principle 10 requires all mental health services to respect and maintain privacy and confidentiality of mental health patient information.

Adherence to this guideline will reduce the risk of disciplinary action and other consequences being taken against a staff member for a breach of confidentiality. It will also reduce the risk of damage to the reputation of a staff member or health service resulting from a breach of confidentiality.

2. Key Principles

1. All staff must adhere to the principles of patient confidentiality and privacy as outlined in the [Department of Health Information Access Use and Disclosure Policy](#) and the [NMHS Healthcare Record - Access and Document Release Policy](#) and only release patient information in accordance with the [MH Release of Information Policy](#).
2. Where staff have concerns or unsure as to whether patient information should be released or shared with other health care professionals, they should seek legal advice [from DoH Legal and Legislative Services Unit](#) or through the Health Service Provider's usual processes to seek legal advice. WA Health employees may initiate a request for legal advice by submitting the Request for Legal Advice form available via the Legal and Legislative Services webpage.
3. All MHPHDS staff must regard all information concerning patients/consumers or hospital/community service matters as confidential.
4. Privacy refers to the right of an individual to control disclosure of their health information. Whilst State Public Health Services are not governed by the Commonwealth Privacy Act 1988 and a State Privacy Act has not been developed for Western Australia, the State Government's policy recognises the thirteen Australian Privacy Principles as the basis for policy and guideline formulation. See [Public Sector Commissioner's Circular](#) 2014-02 Policy framework and standards for information sharing between government agencies on the Public Sector website.
5. Staff have a duty to maintain appropriate confidentiality of all patient information that they are exposed to in the course of their work.

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6. The duty protects information created, disclosed or acquired (directly or indirectly) by health care professionals in their professional capacity.
 7. Any breach of confidentiality may lead to disciplinary action; action for damages against the person (and/or his or her employer) that made the unauthorised disclosure; and disciplinary action under the health care professional's regulatory statute. Refer to the WA Health Code of Conduct and WA Health Discipline Policy for further information.
 8. The NMHS Information Breach Response Procedure must be followed for all information breaches. Staff must also act in accordance with the [DOH Information Breach Policy MP0135/20](#).
 9. There are a number of exceptions to the duty to maintain patient confidentiality, including those found under the [Freedom of Information Act 1992](#) (WA) (FOI Act) and under section 248 of the [Mental Health Act 2014](#) (WA) (MHA). Further exceptions can be seen where there is an overriding public interest to release the information (refer to NMHS Managing a Public Interest Disclosure procedure) or where an order has been issued by a court of law where otherwise confidential information may be disclosed.

3. Confidentiality

- NMHS Mental Health Services has a commitment that all information concerning patients, management or administrative matters related to patient care will be regarded as confidential by all staff and others involved in the patient's care.
- Confidentiality refers to the ethical and legal concept that patient information will only be disclosed to authorised individuals/organisations, at authorised times and in an authorised manner.
- All staff are required to ensure that patient/client privacy is maintained at all times.
- Suppression of patient information will only occur in extreme cases and based on clinical reasoning.
- Any request to have patient information blocked on PSOLIS will require approval by the Director of Clinical Services NMHS MH. No blocking will be considered for community mental health patients. Any breach of confidentiality may lead to disciplinary action being taken, including the matter being treated as serious misconduct under the [DoH Information Breach Policy MP 0135/20](#), the [DoH Information Breach Process Guide](#) and the [NMHS Information Breach Response Procedure](#). There will be no blocking of patient information on PSOLIS to prevent inappropriate access by staff.

4. Compliance and Evaluation

All breaches of patient confidentiality should be logged in DATIX CIMS by the line manager of the person/s involved in a breach of confidentiality. The number of Information Breach Notification forms sent to the NMHS Business Intelligence Unit will determine compliance rate. Yearly KPI figures can be generated by the NMHS Business Intelligence Unit to monitor compliance with this policy. The expected rate of compliance is 100%.



Related internal policies, procedures and guidelines

[Department of Health Patient Confidentiality Fact Sheet](#)

[NMHS Healthcare Record – Access and Document Release Policy](#)

[NMHS Health Record Management Policy](#)

[NMHS Information Breach Response Procedure](#)

[NMHS My Health Record \(MHR\) System Control, Administration, Access, Upload and Security Procedure](#)

References

[Australian Privacy Principles](#)

[Freedom of Information Act 1992](#)

[Guardianship and Administration Act 1990](#)

[Health Practitioner Regulation National Law \(WA\) Act 2010](#)

[Health Services \(Information\) Regulations 2017](#)

[Health Services Act 2016 Part 17, s213 – 221](#)

[Legal and Legislative Services Unit, Department of Health, Western Australia](#)

[Mental Health Act 2014](#)

[My Health Records Act 2012, s.61](#)

[Office of the Australian Information Commissioner website – Guidelines for Agencies](#)

[Privacy Act 1988](#)

[WA Health Acceptable Use of Information and Communication Technology Policy MP0066/17](#)

[WA Health Information Access, Use and Disclosure Policy](#)

[WA Health Information Access, Use and Disclosure Policy Resource Compendium](#)

[WA Health Patient Confidentiality Fact Sheet](#)

[WA Health Information Breach Policy MP0135/20](#)

[WA Health Information Security Policy MP0067/17](#)

[WA Health Information Storage Policy](#)

[WA Health My Health Record \(MHR\) Policy](#)

[Australian Open Disclosure Framework](#)

Useful resources

[WA Health Code of Conduct](#)

[WA Health Discipline Policy](#)



Policy Sponsor	Director of Clinical Services NMHS MHPHDS				
Policy Contact	Manager Area Health Information NMHS MHPHDS				
Date First Issued:	07/09/2022	Last Reviewed:	N/A	Review Date:	07/09/2025
Approved by:	MH Clinical and Corporate Information Management Committee			Date:	August 2022
Endorsed by:	Director of Clinical Services MHPHDS			Date:	07/09/2022
NSQHS Standards Applicable:	☒ Std 1: Clinical Governance ☒ Std 2: Partnering with Consumers ☐ Std 3: Preventing and Controlling Healthcare Associated Infection ☐ Std 4: Medication Safety ☒ Std 5: Comprehensive Care ☒ Std 6: Communicating for Safety ☐ Std 7: Blood Management ☐ Std 8: Recognising and Responding to Acute Deterioration				
National Standards for Mental Health Services	☒ Std 1: Rights and Responsibilities ☐ Std 2: Safety ☐ Std 3: Consumer and Carer Participation ☐ Std 4: Diversity Responsibility ☐ Std 5: Promotion and Prevention ☒ Std 6: Consumers ☐ Std 7: Carers ☒ Std 8: Governance, leadership and management ☐ Std 9: Integration ☐ Std 10: Delivery of Care ☐ 10.1 Supporting Recovery ☐ 10.2 Access ☐ 10.3 Entry ☐ 10.4 Assessment and Review ☐ 10.5 Treatment and Support ☐ 10.6 Exit and Re-entry				
Chief Psychiatrist's Standards for Clinical Care:					
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Document Version Control			
Date	Version	Author	Notes
05/08/2022	V1	A/ Director of Clinical Services	Initial endorsement, guideline setting out MH staff members obligations in relation to the confidentiality of all patient information, addition of no blocking of patient information on PSOLIS added.

The health impact upon Aboriginal people have been considered, and where relevant incorporated and appropriately addressed in the development of this health (ISD20200522123332)

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